

STAFF REPORT

DATE: May 7, 2024

TO: City Council

FROM: Kelly Stachowicz, Assistant City Manager
Sherri Metzker, Community Development Director

SUBJECT: Development Impact Fee Annual AB1600 Report for FY2021-2022

Recommendation

Receive the enclosed Annual Development Impact Fee Report which has been prepared for the public and City Council review, *pursuant to the requirements of Government Code Section 66006(b) and Government Code Section 66001(d), as amended by Assembly Bill (AB) 518 and Senate Bill 1693, this Development Impact Fee Report for the City of Davis is being filed for the fiscal year ending June 30, 2022.*

Fiscal Impact

This report is provided for informational purposes, and therefore there has no direct fiscal impact. The AB1600 report is a compliance document, require by the State of California and is not a budgetary document.

Below is a chart showing the the fund balances as of the end of FY22 for each of the funds.

	<i>Fund Balances, End of FY22</i>
<i>Roadways (Fund 485)</i>	\$4,283,867
<i>Parks (Fund 483)</i>	\$6,560,765
<i>Public Safety Facilities (Fund 484)</i>	\$2,493,460
<i>Open Space (Fund 482) (1)</i>	\$1,746,931
<i>General Facilities (Fund 481)</i>	\$1,842,110
<i>Totals</i>	<i>\$ 16,927,133</i>

Note: (1) The development Impact fees for Open Space are separate and distinct from the Open Space Protection Tax (Measure O)

Council Goal(s)

This item relates to Council Goals

- Achieving greater fiscal resilience
- Maintaining high quality infrastructure and services

Commission Input

This item is coming directly to the City Council for compliance.

Background and Analysis

Development impact fees are charged by local governmental agencies in connection with approved development projects. The purpose of these fees is to defray all or a portion of the cost of public facilities related to the impacts created by development projects, thereby implementing the project's "fair share" of the cost of the Capital Improvements Projects (CIP), consistent with the general plan. The legal requirement for enactment of a development impact fee program is set forth in Government Code Sections 66000-66025 (the "Mitigation Fee Act"), the bulk of which was adopted in 1987 as AB 1600.

In the City of Davis, development impact fees are collected at either building permit or if by way of agreement, at the time of certificate of occupancy for the purpose of mitigation of the impacts caused by new development on the City's infrastructure. Fees may only be used to finance acquisition, construction and improvement of public facilities needed as a result of new development.

Development Impact Fees are based on the premise that new development should pay the cost associated with growth. Conversely, the existing residents should only bear the cost of improving existing services, which may include expanded services that serve the existing community. Development impact fees can be used for expansion, facility upgrades or additions necessary to help accommodate growth. Funds cannot be used to finance operations, maintenance or current deficiencies. For example, roadway impact fees may be utilized to improve an intersection to better handle increased traffic from new development, but cannot be utilized for re-paving because of general wear and tear.

For many years, the City has approximated the share of impacts that are associated with new development when the improvement or category includes both impacts of new development and needs of the existing development in the City. This is based on the relative size population residing in the City in 1987 and the growth of new development through build out. Improvements that are needed solely because of new development are generally paid for by new development.

A separate fund has been established to account for the impact of new development on each of the following type of public facilities:

Roadways – To provide for traffic improvements necessary to address the increase in traffic generated by new development as specified in the City's General Plan and Capital Improvement Plan

Parks – The acquisition and development of parks as specified in the City's Parks Master Plan and Capital Improvement Plan.

Public Safety – To provide for the expansion, design and construction of Public Safety facilities as related to new development as specified in the City's General Plan and Capital Improvement Plan

General Facilities - To provide for the expansion, design and construction of General facilities as related to new development as specified in the City's General Plan and Capital Improvement Plan

Open Space – To provide acquisitions and development related to the Open Space program and Capital Improvement Plan (separate from the Measure O Open Space Tax)

Fees imposed on new development within the City have been in place since 1990 with periodic updates. Water, storm water and sewer connection charges, which have similar characteristics to development impact fees, have different procedural and reporting requirements.

As indicated with the City's capital improvement projects, many other revenue sources are used in constructing or acquiring capital assets, including Federal and State grants, and City construction tax. A complete picture of the City's capital financing activity by fund will be shown in the City's Annual Budget.

Annual Report

State law requires any local agency that imposes development impact fees to prepare an annual report providing specific information about those fees. A brief description of the type of fee in the account, the amount of the fee, the beginning and ending balance of the account and the amount of the fees collected and the interest earned. Therefore, in accordance with the provision of the California Government Code Section 66006 (b) and 66001 (d), as amended by Assembly Bill (AB) 518 and Senate Bill 1693, this Development Impact Fee Report for the City of Davis is being filed with the City Council for the fiscal year ending June 30, 2022. The Financial Summary Report showing revenues, expenditures and balances for FY22 is on the following page.

City of Davis
Financial Summary Report
Statement of Revenues, Expenditures and Changes in Fund Balance
For the year Ended June 30, 2022

Development Impact Fees

Description	Roadways Fund 485	Parks Fund 483	Public Safety Facilities Fund 484	General Facilities Fund 481	Open Space Fund 482
REVENUES					
Fees	\$ 1,271,229	\$ 1,566,606	\$ 230,080	\$ 494,665	\$ 280,401
Interest	(72,771)	(74,334)	(37,685)	(20,720)	(22,094)
Other Revenue					
Total Revenues	<u>\$ 1,198,458</u>	<u>\$ 1,492,272</u>	<u>\$ 192,395</u>	<u>\$ 473,948</u>	<u>\$ 258,307</u>
EXPENDITURES					
Expenditures	<u>2,125,296</u>	<u>578,909</u>	<u>826,650</u>	<u>118,651</u>	<u>239,866</u>
Total Expenditures	<u>\$ 2,125,296</u>	<u>\$ 578,909</u>	<u>\$ 826,650</u>	<u>\$ 118,651</u>	<u>\$ 239,866</u>
REVENUES OVER (UNDER) EXPENDITURES	\$ (926,838)	\$ 913,363	\$ (634,255)	\$ 355,294	\$ 18,441
Fund Balance, Beginning of Year	<u>5,210,705</u>	<u>5,647,402</u>	<u>3,127,715</u>	<u>1,486,816</u>	<u>1,728,490</u>
Fund Balance, End of Year	<u><u>\$ 4,283,867</u></u>	<u><u>\$ 6,560,765</u></u>	<u><u>\$ 2,493,460</u></u>	<u><u>\$ 1,842,110</u></u>	<u><u>\$ 1,746,931</u></u>

Note:

Revenue is based on first in, first out method

Balances reflected on the Financial Summary are only development impact fee revenues and expenditures only.

Current Fee schedule

The Development Impact Fee program (see attachment 1) was adopted on December 9, 2008 with an effective date of February 15, 2009. The cost of the improvements in the Capital Improvement Project is offset by the Development Impact Fees. The establishment and use of development impact fees are strictly controlled under AB 1600. Development impact fees must be used only for infrastructure that has a direct relationship to the impacts of new development.

The City has completed the Downtown Davis Specific Plan and is beginning the process to update the General Plan. Both documents will be critical to updating Development Impact Fees in the future, as they are fundamentally tied to infrastructure needs associated with community growth. The General Plan update will inform the city on those infrastructure needs and will determine the commensurate fee. Additionally, individual projects seeking General Plan Amendments prior to the next Development Impact Fee update may warrant consideration of supplemental fees on a case-by-case basis to account for potential impacts not previously accounted for in the current development impact fee model.

Development Impact Fee Project Identification

The Development Impact Fee Project Identification table illustrates the following reporting requirements defined by California Government Codes Section 66006 (b):

- An identification of each public improvement on which fees were expended and the amount of expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.
- An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement.

Project Number	Current Projects	Project Phase	Estimated Start Date	Estimated Completion Date	Project Budget	Development Impact Fund Expenditure Amounts for Fiscal Year 2021-22 as of June 30,	Project Expenditures for all Funds as of June 30, 2022	Estimated % of Project Funded with Impact Fees
Roadways	Fund 485							
	3205 CAAP Sustainability Project		2021	2024	70,939.00	166,652	738,187.00	22.58%
	8250 Transp Infra Rehab	Construction	2013	On going	5,865,000.00	874,584	8,410,892.00	10.40%
	8257 Mace Improvements	Construction	2014	2024	1,131,200.00	5,761	72,863.00	7.91%
	8282 Fourteenth Street /Villanova Drive Improvements	Design	2018	2025	0.00	83,743	104,373.00	80.23%
	8289 East Covell Bicycle Path North Side	Design	2021	2025	0.00	311	487.00	63.86%
	8298 Anderson Road Improvement	Design	2018	2025	467,400.00	10,717	10,717.00	100.00%
	8313 Poleline Rd Olive Dr.	Close-out	2017	2022	160,500.00	823,725	3,902,092.00	21.11%
	8323 Tulip Ponte Verde Improvement	Awarded	2022	2022	330,600.00	4,400	25,974.00	16.94%
	8730 Richards BLVD/1-80 Improvements	Design	2015	2024	1,325,000.00	<u>155,403</u>	205,407.00	75.66%
	Total Roadways Projects					2,125,296		
Parks	Fund 483							
	4490 N St Park and Central Park Revitalization		2022	Ongoing		19,848	789,453.00	2.54%
	8277 City Hall Generators	Design	2021	2023	182,400.00	10,096	23,469.00	43.02%
	8294 Russ Blvd Green St Project	Design	2022	2022	660,600.00	11,368	11,368.00	100.00%
	8295 Rosecreek Park Enhance	Awarded	2018	2022	75,000.00	110	26,912.00	0.41%
	8315 Sports Court	Complete	2020	2023	445,275.00	322,268	1,875,282.00	17.19%
	8336 GIS Master Plan	Planning	2020	2022	0.00	231	231.00	100.00%
	8337 Park Amenity and Playground Replacements (Major)	Complete	2018	2021	0.00	0	-	0.00%
	8338 Park Amenity and Playground Replacements (Minor)	Study	2020	2023	70,500.00	36,475	107,873.00	33.81%
	8339 Parks Facilities-Rehab and Replacements (Major)	Study	2021	2024	185,100.00	<u>178,513</u>	221,609.00	80.55%
	Total Parks Projects					578,909		
General Facilities	Fund 481							
	3282 General Plan Update and Review			On going		2,530	302,808.00	0.84%
	8512 Public Works Facility			On going	200,000.00	<u>116,121</u>	116,121.00	100.00%
	Total General Facilities Projects					118,651		
Open Space	Fund 482							
	3255 North Davis Upland	Complete			141,462.00	26,321	225,701.00	11.66%
	8719 Gill Easement		2022		0.00	145,475	365,762.00	39.77%
	8747 S Fork Pres Public Access	Complete	2021	2021	0.00	<u>68,070</u>	540,831.00	12.59%
	Total Open Space Projects					239,866		
Public Safety	Fund 484							
	5201 Fire Equipment (Truck)		2021			810,660	2,064,508.00	39.26%
	5610 Police Safety Equipment	Construction				13,526	2,455,207.00	0.55%
	7908 Electrical Assessment at Comm Pool	Construction	2021	2022	400,000.00	10	1,331,656.00	0.00%
	8277 City Hall Generators	Design	2021	2023	182,400.00	<u>2,454</u>	23,469.00	10.45%
	Total Public Safety Projects					826,650		
	Total Expenditures					<u>3,889,537</u>		

All of the projects including all funding sources and approximate dates of funding can be found in the 2021/22 CIP budget as part of the [City's Adopted 21-22 Budget](#).

Compliance

The City Council at a public meeting has reviewed the following information pursuant to California Government Code Section 66006(b)(1), as is required by California Government Code Section 66006(b)(2), including:

- A brief description of the type of fee in the account or fund;
- The amount of the fee;
- The beginning and ending balance of the account or fund;
- The amount of fees collected and the interest earned;
- An identification of each public improvement on which fees were expended and the amount of the expenditure on each improvement, including the total percentage of the cost of the public improvement that was funded with fees;
- An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in Section 66001(a) (2), and the public improvement remains incomplete.

The City Council at a public meeting has reviewed the proposed findings, as required by California Government Code Section 66001(d) (1), including:

- Identify the purpose to which the fee is to be put;
- Demonstrate a reasonable relationship between the fee and the purpose for which it is charged;
- Identify all sources and amounts of funding anticipated to complete financing in incomplete improvements;

Attachments

1. Development Impact Fees Rates

DEVELOPMENT IMPACT FEE SUMMARY

Effective Feb. 15, 2009

Development Impact Fee Summary - Base Fees Payable Outside of City Wide Mello-Roos Districts

Land Use	Units	Roadways	Storm Sewer	Parks	Open Space	Public Safety	General Facilities
Single Family Detached	dwelling	\$8,093	\$305	\$5,014	\$863	\$992	\$2,389
Single Family Attached	dwelling	\$6,023	\$305	\$4,145	\$714	\$820	\$1,975
Studio/One Bedroom	dwelling	\$3,047	\$85	\$3,277	\$564	\$700	\$1,249
Multi-family	dwelling	\$4,942	\$85	\$3,827	\$659	\$757	\$1,823
Core/AC Retail	1,000 sf	\$8,448	\$118	\$730	\$126	\$1,078	\$928
Auto Sales (AC)	1,000 sf	\$4,236	\$118	\$730	\$126	\$1,078	\$928
Other Retail ⁽⁴⁾	1,000 sf	\$20,239	\$118	\$730	\$126	\$1,078	\$928
Office/Business Park	1,000 sf	\$5,192	\$118	\$730	\$126	\$1,078	\$928
Institutional	1,000 sf	\$4,048	\$118	\$730	\$126	\$1,078	\$928
Industrial	1,000 sf	\$480	\$118	\$190	\$33	\$280	\$241

Development that is outside the scope anticipated in the General Plan may trigger a site specific review of impact fee level

East Davis Development Impact Fees After Mello-Roos Credits (CFD 1990-1)

Land Use	Units	Roadways	Storm Sewer	Parks	Open Space	Public Safety	General Facilities
Single Family Detached	dwelling	7,315	305	5,014	863	515	2,112
Single Family Attached	dwelling	5,444	305	4,145	714	494	1,786
Studio/One Bedroom	dwelling	2,754	85	3,277	564	399	1,088
Multi-family	dwelling	4,467	85	3,827	659	479	1,662
Core/AC Retail	1,000 sf	7,635	118	730	126	515	811
Auto Sales (AC)	1,000 sf	3,829	118	730	126	515	811
Other Retail	1,000 sf	18,292	118	730	126	515	811
Office/Business Park	1,000 sf	4,692	118	730	126	515	811
Institutional	1,000 sf	3,658	118	730	126	515	811
Industrial	1,000 sf	434	118	190	33	242	233

East Davis/Mace Development Impact Fees After Mello-Roos Credits (CFD 1990-2)

Land Use	Units	Roadways	Storm Sewer	Parks	Open Space	Public Safety	General Facilities
Single Family Detached	dwelling	6,825	305	5,014	863	773	2,143
Single Family Attached	dwelling	5,079	305	4,145	714	671	1,807
Studio/One Bedroom	dwelling	2,570	85	3,277	564	562	1,106
Multi-family	dwelling	4,167	85	3,827	659	630	1,680
Core/AC Retail	1,000 sf	7,124	118	730	126	820	824
Auto Sales (AC)	1,000 sf	3,572	118	730	126	820	824
Other Retail	1,000 sf	17,067	118	730	126	820	824
Office/Business Park	1,000 sf	4,378	118	730	126	820	824
Institutional	1,000 sf	3,413	118	730	126	820	824
Industrial	1,000 sf	405	118	190	33	263	234

North Central Davis Development Impact Fees After Mello-Roos Credits (CFD 1990-3)

Land Use	Units	Roadways	Storm Sewer	Parks	Open Space	Public Safety	General Facilities
Single Family Detached	dwelling	6,398	305	5,014	863	176	2,122
Single Family Attached	dwelling	4,761	305	4,145	714	263	1,793
Studio/One Bedroom	dwelling	2,409	85	3,277	564	186	1,094
Multi-family	dwelling	3,906	85	3,827	659	282	1,668
Core/AC Retail	1,000 sf	6,678	118	730	126	114	815
Auto Sales (AC)	1,000 sf	3,349	118	730	126	114	815
Other Retail	1,000 sf	15,998	118	730	126	114	815
Office/Business Park	1,000 sf	4,104	118	730	126	114	815
Institutional	1,000 sf	3,200	118	730	126	114	815
Industrial	1,000 sf	380	118	190	33	215	234

DEVELOPMENT IMPACT FEE SUMMARY**Effective Feb. 15, 2009**

South Davis Development Impact Fees After Mello-Roos Credits (CFD 1990-4)

Land Use	Units	Roadways	Storm Sewer	Parks	Open Space	Public Safety	General Facilities
Single Family Detached	dwelling	6,980	305	5,014	863	869	2,228
Single Family Attached	dwelling	5,195	305	4,145	714	736	1,865
Studio/One Bedroom	dwelling	2,628	85	3,277	564	622	1,156
Multi-family	dwelling	4,262	85	3,827	659	685	1,730
Core/AC Retail	1,000 sf	7,286	118	730	126	933	860
Auto Sales (AC)	1,000 sf	3,654	118	730	126	933	860
Other Retail	1,000 sf	17,456	118	730	126	933	860
Office/Business Park	1,000 sf	4,478	118	730	126	933	860
Institutional	1,000 sf	3,491	118	730	126	933	860
Industrial	1,000 sf	414	118	190	33	271	237

West Davis Development Impact Fees After Mello-Roos Credits (CFD 1990-5)

Land Use	Units	Roadways	Storm Sewer	Parks	Open Space	Public Safety	General Facilities
Single Family Detached	dwelling	8,093	305	5,014	863	460	2,215
Single Family Attached	dwelling	6,023	305	4,145	714	456	1,857
Studio/One Bedroom	dwelling	3,047	85	3,277	564	364	1,148
Multi-family	dwelling	4,942	85	3,827	659	447	1,722
Core/AC Retail	1,000 sf	8,448	118	730	126	449	854
Auto Sales (AC)	1,000 sf	4,236	118	730	126	449	854
Other Retail	1,000 sf	20,239	118	730	126	449	854
Office/Business Park	1,000 sf	5,192	118	730	126	449	854
Institutional	1,000 sf	4,048	118	730	126	449	854
Industrial	1,000 sf	480	118	190	33	238	236